IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA
CRIMINAL DIVISION

COMMONWEALTH OF PENNSYLVANIA , *Plaintiff,* v. LASHADA LEE, *Defendant.*	**No.: CP-28-CR-594-2023** **Declaration of Michelle Etlin in Support of Defendant Lee's Pro Se Omnibus Motion**

Declaration of Michelle Etlin pursuant to 42 Pa.C.S. §6206 in Support of Pro Se Omnibus Motion of Lashada Lee

I, Michelle Etlin, an adult citizen of Maryland, hereby state as follows under the penalties of perjury, in support of the pro se Motion filed by Defendant Lashada Lee asking this Honorable Court to dismiss the criminal information against Lee, and in support thereof I hereby state:

1. I am not a lawyer and have never been one. Although I am now retired and disabled, I worked for 55 years as a child care worker, legal secretary and medical secretary. I hold no degrees or professional credentials. I have made all this clear to Movant/Defendant Lashada Lee ("Lashada").

2. Since 1980 I have engaged in volunteer activism and advocacy for mothers facing family court problems, and co-authored a book on the subject in 1995, namely: Rosen, N. Etlin, M. *The Hostage Child: Sex Abuse Allegations in Custody Disputes*, Indiana University Press, Bloomington, IN, 1995.

3. I met Lashada in 2023 when my friend Amy Neustein, Ph.D. told me about her case and asked if I could help her in any way. I interviewed her at that time and told her that I would like to help her but I could not do much to assist, inasmuch as I was both disabled and blind at that time and most of the attorneys I knew who might help had either retired, passed away, or were not barred in Pennsylvania. Knowing that, Lashada still wanted to keep in touch with me as her case progressed and so we have been in touch since then. I accompanied her to Court on September 3, 2026.

4. When Lashada was being represented by Mr. Enoch Jones of the Public Defender's Office ("Jones"), Lashada told me he would not let anybody, even her own sister, sit in on meetings with him and this troubled her because she wanted help understanding her options. I told her I had been with mothers in conferences with their attorneys literally scores of times and I would try to help. I phoned Jones repeatedly but never got a call back. Eventually Lashada told me he refused to allow any contact. He also told her several other discouraging things. He wanted her to plead guilty in exchange for years of probation, the terms of which were that she would have absolutely no contact with her daughters. This just didn't sound right. It was more like a punitive custody order than like a criminal plea bargain or a criminal sentence. Lashada was sure this was not in her children's best interests.

5. This made me believe that there was something fundamentally wrong with Jones's representation of Lashada; that outcome didn't sound to me like an appropriate condition of probation. How would her Probation Officer know what was in her children's best inter-

ests, with them living in Florida and out of touch? Why would probation require that kind of Draconian restriction from someone who never had abused her children or anyone else?

6. In early 2024 I urged Lashada to attend the 16th Annual Battered Mothers Custody Conference held in April, 2024 in Albany, New York. She registered and attended.[1] She was able to get information about current problems facing mothers in family court proceedings and to meet other mothers, many legal and other professionals, and to gain an understanding of the issues and challenges involved in these cases. Also, apparently, several journalists covered the proceedings there and one investigative journalist in particular began to follow Lashada's case.

7. When Jones left the Public Defenders Office and joined the prosecutor's office, Lashada hired private counsel, Sherry Cooper, Esq. ("Cooper") who, unlike Jones, allowed the client to confer with her with friends and advocates there for support. During a conversation with Cooper, I was encouraged to learn that she was planning to put forward the affirmative defense provided by §2904: protection of the children from danger of harm to their welfare. But Cooper had not mentioned anything about the second affirmative defense available: there being no custody order from a court of competent jurisdiction. I didn't know about that second affirmative defense at the time either; because of my medical condition at the time I had not carefully read the statute or any analysis of it. Ms. Cooper sounded competent to me so I didn't try to find out more than she told us.

[1] Please see www.BatteredMothersCustodyConference.org.

8. When Lashada changed lawyers again, I asked if she wanted me to confer with Mr. Walker but she said it was basically too expensive. So I was alarmed when, in August of this year, she called me and told me that he had done nothing to prepare for the pretrial hearing and that he was advising her to just plead guilty because she "could not win." Ms. Cooper thought she could win. What had changed?

9. I had recovered my eyesight (although it is still poor) by extensive surgery by this time and I began to read as much as I could about her case and the Pennsylvania law under which she was charged. I called many doctors and lawyers I knew and for whom I had worked over my 55-year secretarial career. The more I told Lashada's story, the more I gathered opinions that she had been legally and otherwise disadvantaged in the worst way. I think the quote I heard that most concerned me was a New York attorney for whom I had worked for years, who asked: "Why on earth hasn't anyone made a motion to dismiss the indictment based on that lame excuse for a court order?"

10. I promptly told Lashada what this lawyer said and gave her a little guidance in how to research the matter. She took off like lightening and we spoke repeatedly about what she was discovering. I couldn't accompany her in much of the research because of my health but she persevered. I spoke a few times to my colleagues and especially to Dr. Neustein, who was impressed with Lashada's progress and industriousness. When Lashada asked me to write a declaration supporting her motion, I was honored and immediately did my best to comply. All the attorneys and colleagues to whom I have showed Lashada's work have been very encouraging

and supportive, and some of them have given helpful notes on the issues involved.

11. Meanwhile, we all have been pounding the proverbial pavement and beating the proverbial bushes to find Pennsylvania counsel for Lashada. The search has been complicated by financial considerations and timing. Finally, however, I believe Lashada has a viable possibility to retain Ms. Renee Mazer of Pennsylvania but I don't know whether Lashada will be able to retain her soon enough for Ms. Mazer to make it to court in Franklin County by October 29; that seems like short time, but I hope this works out. Meanwhile I am feeling very relieved that Lashada is planning to perfect and file the Motion.

12. I can verify the fact that there was really no way for Lashada to know that there was this type of motion available in a criminal case before this time. I had seen no fewer than 261 mothers' custody battles in all 50 states and DC (and Israel, Canada, New Zealand, the Netherlands and the Dominican Republic) before I met Lashada and had never actually seen a criminal case like this one before. In the 40 years that I voluntarily went to court with other mothers, I never was in criminal court before.

13. As soon as Lashada heard about the remedy of a Motion to Dismiss, she set about preparing this Motion and I'm sure it is as good as she can possibly make it, and I sincerely pray the Court will consider it on the merits.

14. I have tried to help Lashada gather the exculpatory evidence that her various attorneys have never obtained, but these efforts have been fruitless.

(a) We wrote to the Florida CPS Agency but got no response whatsoever; I called them and asked for guidance and followed all their instructions to no avail; one clerk told me the mother would need to hire Florida counsel to get the information.

(b) At one time I managed to get the Maryland Court file sent to an organization that has done good pro bono work helping mothers in child abuse/custody cases (Child Justice, Inc. in Maryland) but they said it was now a Pennsylvania case so they could not help.

(c) Many other efforts to get help for this beleaguered protective mother have netted no additional help. It is said that God helps those who help themselves, so I say, may God help the mother who is now helping herself with this Motion.

15. I am willing to be placed under oath and questioned about anything I have written in this declaration, or anything else germane to this case that is within my knowledge.

Verification — Unsworn Declaration
Statement Pursuant to the Pennsylvania
Uniform Unsworn Declarations Act (42 Pa.C.S. § 6206):

I, Michelle Etlin, do hereby declare under penalty of perjury under the law of the Commonwealth of Pennsylvania that the foregoing statement is true and correct.

Signed on the _____ day of October, 2026, at Pikesville, Maryland

_____

Signature